

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
SHERIKA GRAVES and SHARWN LOVE,

SUMMONS

Plaintiffs,

Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD POLICE OFFICER
MUBBASHAR ZAHID, Shield No. 3267, NYPD
POLICE OFFICER DANIEL DEFRANCESCO, SHIELD
NO. 3876, NYPD POLICE OFFICER KHURRAM
ZUBAIR, SHIELD NO. 24264 and NYPD POLICE
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,

Plaintiffs designate Kings
County as the place of trial.

Defendants.
----- X

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 14, 2023

Yours, etc.

Cary London

Cary London, Esq.

Shulman-Hill, PLLC

Attorneys for Plaintiffs

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NEW YORK CITY POLICE OFFICER MUBBASHAR ZAHID, Shield No. 3267,
NYPD 71st Precinct; 421 Empire Boulevard, Brooklyn, NY 11225

NEW YORK CITY POLICE OFFICER DANIEL DEFRANCESCO, Shield No. 3876,
NYPD 60th Precinct; 2951 W 8th Street, Brooklyn, NY 11224

NEW YORK CITY POLICE OFFICER KHURRAM ZUBAIR, Shield No 24264,
NYPD 60th Precinct; 2951 W 8th Street, Brooklyn, NY 11224

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SHERIKA GRAVES and SHARWN LOVE,

INDEX NO.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
MUBBASHAR ZAHID, Shield No. 3267, NYPD
POLICE OFFICER DANIEL DEFRANCESCO, SHIELD
NO. 3876, NYPD POLICE OFFICER KHURRAM
ZUBAIR, SHIELD NO. 24264 and NYPD POLICE
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiffs, SHERIKA GRAVES and SHARWN LOVE, by their attorneys, Shulman-Hill, PLLC, as and for their Verified Complaint herein, allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On December 3, 2020, at approximately 1:00 a.m., Plaintiffs Sherika Graves and Sharwn Love, while lawfully in the vicinity of 2945 West 23rd Street, County of Kings, New York, were subject to an unlawful arrest, detention, and excessive use of force by defendant Police Officers. In addition, Plaintiffs were assaulted, battered, and subjected to several weeks of unlawful confinement at the NYPD 60th Precinct, Kings County Central Bookings, and Rikers Island Correctional Facility. Plaintiffs were deprived of their rights under New York state laws and their constitutional, common law, and statutory rights when the individual defendants unlawfully stopped, detained, subjected to excessive force, assaulted, battered, passed along false accusations to prosecuting attorneys, and engaged in the malicious prosecution of Plaintiffs, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Sherika Graves (“Ms. Graves”) is a resident of the state of New York.

3. Plaintiff Sharwn Love (“Mr. Love”) is a resident of the state of New York.

4. NYPD Police Officer Mubbashar Zahid, Shield No. 3267, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

5. NYPD Police Officer Mubbashar Zahid, Shield No. 3267, is being sued in his individual and official capacity.

6. NYPD Police Officer Mubbashar Zahid, Shield No. 3267, was at all times relevant herein assigned to the NYPD 60th Precinct; he is currently assigned to the NYPD 71st Precinct.

7. NYPD Police Officer Daniel Defrancesco, Shield No. 3876, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

8. NYPD Police Officer Daniel Defrancesco, Shield No. 3876, is being sued in his individual and official capacity.

9. NYPD Police Officer Daniel Defrancesco, Shield No. 3876, currently and at all times relevant herein assigned to the NYPD 60th Precinct.

10. NYPD Police Officer Khurram Zubair, Shield No.24264, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

11. NYPD Police Officer Khurram Zubair, Shield No.24264, is being sued in his individual and official capacity.

12. NYPD Police Officer Khurram Zubair, Shield No.24264, currently and at all times relevant herein assigned to the NYPD 60th Precinct.

13. NYPD Police Officers John Does Numbers One through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

14. NYPD Police Officers John Does Numbers One through Ten are being sued in their individual and official capacities.

15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees

of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. Plaintiffs in furtherance of their causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

18. In accordance with New York State law and General Municipal Law Section 50, Plaintiffs testified at hearings held pursuant to General Municipal Law Section 50-H on December 12, 2022.

19. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

22. On December 3, 2020, at approximately 1:00 a.m., Plaintiffs were lawfully present in the vicinity of 2945 West 23rd Street, County of Kings, New York, when the defendant Police Officers unlawfully arrested Plaintiffs without probable cause or legal justification.

23. At the aforementioned place and time, Plaintiffs were sitting inside their car, which was lawfully parked outside their home.

24. Mr. Love was smoking a cigar and talking with his wife, Ms. Graves, while the car was warming up.

25. Plaintiffs observed a marked police vehicle pull up behind them and four uniformed defendant officers got out of the vehicle.

26. A defendant police officer approached the driver's side of the vehicle and asked Mr. Love for his identification and registration, which the plaintiff provided.

27. Defendant officers did not run the plaintiffs' information, and instead began questioning them about the alleged window tint on their vehicle.

28. After several minutes of questioning, defendant officers asked Mr. Love to step out of his vehicle, which he did.

29. At this time another defendant officer opened the passenger side door and said, "get your black ass out of the car, " and began to drag Ms. Graves out of the vehicle.

30. It was at this point that the defendant officers began to arrest the plaintiffs, subjecting them to unlawful pat-down search and tightly restraining them with metal handcuffs.

31. At no time relevant herein did Plaintiffs commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiffs of committing a crime or violating the law in any way.

32. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiffs or from a location that was in Plaintiffs' possession, custody, or control.

33. Plaintiffs did not resist arrest.

34. Nevertheless, Plaintiffs were unlawfully arrested and handcuffed by the defendant officers without legal justification or probable cause.

35. During the arrest, Ms. Graves' coat and shirt were removed by defendant officers, one of whom punched her in the face and broke her glasses.

36. The Plaintiffs were then transported to the NYPD 60th Precinct, where they were unlawfully searched, fingerprinted, photographed, and placed in holding cells.

37. After Ms. Graves asked several times for medical attention, the defendant officers reluctantly took her to Coney Island Hospital, where she received X-rays for her injuries as well as a bandage for her nose. Thereafter, Ms. Graves was taken back to the 60th Precinct.

38. The following day, Plaintiffs were transported to Kings County Central Bookings, where they were again placed in holding cells. Plaintiffs asked repeatedly why they were being detained, but were never given an answer by defendant officers.

39. While Plaintiffs were in custody, the defendant police officers provided the Kings County District Attorney's Office with the false, misleading, and/or incomplete information that Plaintiffs committed a crime.

40. Specifically, the defendant police officers falsely stated to the Kings County District Attorney's Office that Plaintiffs were engaged in Criminal Possession of a Weapon.

41. A short time later, Plaintiffs were arraigned in Criminal Court, charged with crimes they did not commit, their bail was set and they were remanded to Rikers Island Correctional Facility.

42. During the weeks Plaintiffs spent in custody at Rikers, both were subject to assault and battery by fellow inmates.

43. After approximately two (2) weeks in custody at Rikers, Ms. Graves was released on bail; Mr. Love would spend approximately four (4) weeks in total at Rikers before he was released on bail.

44. After her release from custody, Ms. Graves sought further medical care for the injuries she received from defendant officers; she still receives physical therapy as well as treatment for anxiety and depression related to this incident.

45. All charges made against the plaintiffs were dismissed and sealed in their entirety on or about May 2, 2022.

46. Some of the police officer defendants observed the violation of Plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably arresting, confining, and using excessive force against Plaintiffs.

47. The unlawful arrest, confinement, and use of excessive force by the individually named defendants caused Plaintiffs to sustain physical, mental, and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

48. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

49. Defendants owed a duty of care to Plaintiffs.

50. To the extent defendants claim that the injuries to Plaintiffs by the defendant police officers were unintentionally caused and that the force used by the defendants against them was unintentional, then the defendants breached that duty of care by, among other things, dragging them from the vehicle, punching them in the face, seizing and tightly handcuffing them.

51. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

52. All of the foregoing occurred without any fault or provocation by Plaintiffs.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

55. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION
Unlawful Stop, Question, and Search

56. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

57. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

58. The conduct of defendants in approaching, stopping, and grabbing Plaintiffs was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

59. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

62. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

63. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiffs' right to be free of an unreasonable seizure under

the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

64. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

False Imprisonment

65. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

66. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs were conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

67. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

70. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiffs' Fourth And Fourteenth Amendment Rights: Excessive Force

71. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

72. The use of excessive force by defendants by, amongst other things, dragging them from the vehicle, punching them in the face, seizing and tightly handcuffing them, constituted objectively unreasonable physical seizures of Plaintiffs in violation of their rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

74. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

75. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiffs.

76. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiffs' statutory and common law rights as guaranteed Plaintiffs by the laws and Constitution of the State of New York.

77. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

81. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

82. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

83. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

84. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

85. The defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiffs' Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

86. Defendants failed to intervene to prevent the unlawful conduct described herein.

87. As a result of the foregoing, Plaintiffs suffered permanent injury, their liberty was restricted for an extended period of time, they were put in fear for their safety, and they were humiliated and subject to other physical constraints.

88. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

90. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

91. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights:

Denial of Right to Fair Trial/Due Process

92. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

93. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

94. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

95. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

96. In withholding/creating false evidence against Plaintiffs, and in providing/withholding information with respect thereto, Defendants violated Plaintiffs' constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

97. As a result of the foregoing, Plaintiffs sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of their constitutional rights.

98. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

99. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

100. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries including, but not limited to: economic, emotional, and psychological injuries.

TENTH CAUSE OF ACTION **Malicious Prosecution**

101. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

102. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

103. Defendants commenced and continued a criminal proceeding against Plaintiffs.

104. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiffs and for each of the charges for which they were prosecuted.

105. The prosecution and criminal proceedings terminated in Plaintiffs' favor on the aforementioned dates.

ELEVENTH CAUSE OF ACTION**Assault**

106. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

107. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully, and maliciously assaulted Plaintiffs in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiffs, that such acts caused apprehension of such contact in the Plaintiffs.

108. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

109. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

110. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

111. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

TWELFTH CAUSE OF ACTION**Battery**

112. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

113. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully, and maliciously battered Plaintiffs when they, in a hostile and/or offensive manner, roughly grabbed Ms. Graves, dragged her from the vehicle and punched her in the face, brutally effecting an arrest of Plaintiff without her consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

114. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

115. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

116. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

117. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

THIRTEENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

118. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

119. Such conduct breached the protections guaranteed to Plaintiffs by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of their person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiffs were aware and did not consent;
- iv. freedom from the lodging of false charges against them by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

120. As a direct and proximate result of defendants' deprivations of Plaintiffs' rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiffs suffered mental, economic, and emotional injuries, as well as a deprivation of liberty.

121. As a result of the above tortious conduct, Plaintiffs were caused to suffer mental, economic, and emotional injuries, as well as a deprivation of liberty.

122. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

123. Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs SHERIKA GRAVES and SHAWN LOVE demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 14, 2023

By: Cary London
Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiffs
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NEW YORK CITY POLICE OFFICER MUBBASHAR ZAHID, Shield No. 3267,
NYPD 71st Precinct; 421 Empire Boulevard, Brooklyn, NY 11225

NEW YORK CITY POLICE OFFICER DANIEL DEFRANCESCO, Shield No. 3876,
NYPD 60th Precinct; 2951 W 8th Street, Brooklyn, NY 11224

NEW YORK CITY POLICE OFFICER KHURRAM ZUBAIR, Shield No 24264,
NYPD 60th Precinct; 2951 W 8th Street, Brooklyn, NY 11224

ATTORNEY'S VERIFICATION

CARY LONDON, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is because Plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
February 14, 2023

Cary London
CARY LONDON, ESQ.